

be stayed with retroactive effect from that day (J 7/96, OJ 1999, 443; J 36/97, J 15/06). If a department of first instance has wrongly stayed grant proceedings, their continuation can be ordered on appeal only with effect for the future. The immediate effect of the stay cannot be set aside with retroactive effect or reversed by a decision in appeal proceedings (J 9/06; see also J 10/19).

In J 28/94 (OJ 1997, 400) the Legal Board found that it was right not to hear the applicant in cases of suspension of proceedings, noting that R. 13 EPC 1973 said nothing about this. It justified the automatic and immediate nature of suspension by the fact that it constituted a preventive measure in favour of the third party requesting it, and also by the need to maintain in full the rights derived from grant of the patent in dispute.

In J 15/06 and J 18/06 the Legal Board followed the justification in J 28/94 (OJ 1997, 400). In J 18/06 the Legal Board considered the communication ordering suspension to be a preliminary procedural measure "sui generis" which was justified as a preventive measure to preserve the third party's possible rights to the patent in dispute and took immediate effect. In J 15/06 the Legal Board noted that the respondent's withdrawal of its request for suspension of the proceedings had significantly changed the procedural situation in the appeal proceedings. There existed no provision in the EPC that the withdrawal of a request for suspension had the effect that the suspension was automatically terminated. However, the existence of a legitimate interest of a third party was an unwritten prerequisite for a further stay of the proceedings under R. 13 EPC 1973. The withdrawal was therefore equivalent to and to be interpreted as consent to the continuation of the proceedings pursuant to R. 13(1) EPC 1973.

Under Art. 97(4) EPC 1973 (Art. 97(3) EPC) the grant proceedings ended on the date on which the European Patent Bulletin mentioned the grant. In the interim period, proceedings for grant were still pending before the EPO and a request for suspension of proceedings under R. 13 EPC 1973 was admissible (J 7/96, OJ 1999, 443). See also J 33/95 of 18 December 1995, J 36/97, J 15/06, according to which the EPO could also order suspension pursuant to R. 13(1) EPC 1973 after the publication of the mention of the grant of a patent was acknowledged, provided that an allowable request had been filed before the publication. Suspension of the proceedings for grant meant that the legal status quo existing at the time they were suspended was maintained, i.e. neither the EPO nor the parties might validly perform any legal acts while the proceedings were suspended (J 38/92 and J 39/92). See also J 14/19, in which the Legal Board held that proof of the existence of the conditions for a stay of proceedings under R. 14(1) EPC must be furnished during a pending grant procedure and thus before publication of the mention of grant in the European Patent Bulletin. Evidence filed after this date may not be taken into account by the European Patent Office for this purpose.

In J 20/05, G. 1/09 and J 9/12 the boards established that R. 14 EPC prevents the filing of a divisional application if the proceedings for grant concerning the earlier application are stayed. In J 9/12 the Legal Board held that an application filed after the effective date of the stay of proceedings concerning the parent application, but before communication of stay, is to be treated as a divisional application.

In J 10/02 the appellant argued that where an appeal was lodged against a decision to suspend grant proceedings, the provisions of R 13 EPC 1973 appeared to be in conflict with those of Art. 106(1) EPC 1973, and that the provisions laid down by an article had to prevail over those of a rule. If the suspension of the grant proceedings were maintained, in spite of the pending appeal, this would amount to a serious procedural violation. The board, however, pointed out that the suspensive effect of an appeal served to provide an appellant with provisional legal protection in the sense that no action should be taken to implement the decision of the department of first instance in order not to deprive the appeal of its purpose. However, if the grant proceedings were continued and the appellant were to arrive at a definitive end to the grant proceedings in its favour, this would be more than the appellant could achieve if it succeeded with the appeal under consideration.

3.1.2 Opening of proceedings before a national court

According to T 146/82 (OJ 1985, 267), suspension had to be ordered if satisfactory proof of the opening of relevant proceedings before a national court was given to the EPO by a third party, provided that the European patent application had not been withdrawn or was not deemed to have been withdrawn.

In J 6/03 the Legal Board held that R 13(1) EPC 1973 referred to proceedings which resulted directly, i.e. generally and automatically, in decisions mentioned in Art. 61(1) EPC 1973. The provision was therefore not applicable in respect of decisions of courts of third states (here, Canada).

In J 14/19, the Legal Board observed that R 14(1) EPC (R 13(1) EPC 1973) did not specify when national proceedings were deemed to have been instituted. The issue of when they became pending was therefore to be assessed under the procedural law of the country whose courts had been asked to take a decision within the meaning of Art. 61(1) EPC (see also J 2/14, T 1138/11). Art. 8 of the Protocol on Recognition 1973 supported this interpretation. It provided that, if proceedings based on the same claim to a grant of a European patent and between the same parties were brought before different courts, the court to which a later application was made had to decline jurisdiction in favour of the court to which an earlier application had been made. Which court had been applied to first had to be determined on the basis of when proceedings had become pending.

In J 36/97 the Legal Board, with reference to Art. 9(2) of the Protocol on Recognition of 5 October 1973, stated that neither the jurisdiction of the national court whose decision was to be recognised nor the validity of such decision may be reviewed by the boards of appeal (see also J 8/96, J 10/02, J 14/19). When and how legally relevant civil proceedings were opened in a contracting state was likewise determined by national law (J 7/00).

In J 9/06 the Legal Board pointed out that, according to G 3/92 (OJ 1994, 607), only the courts of the contracting states had jurisdiction to decide claims to entitlement to the right to the grant of a European patent (see also J 14/19). It was not possible for the EPO, nor was it its function in the context of the examination of a request to suspend proceedings under R 13 EPC 1973, to examine whether the subject-matter disclosed in a European

patent application in respect of which suspension was requested corresponded to the disclosure of another application, ownership of which was disputed before a national court.

In J 15/13 the Legal Board held that while it was established case law that the board was not allowed to examine the substance and merits of a national entitlement case, the board's power of examination could not be limited to merely checking whether the claim submitted with the entitlement suit was directed to the transfer of the application, but – to a certain extent – it also allowed and possibly even required a consideration of the grounds given in the complaint of the entitlement suit. The board had to verify that the national proceedings were in accordance with R 14(1) EPC, since to request a stay of the grant proceedings was a strong weapon which could be misused.

In J 14/19, the Legal Board of Appeal held that, where the EPO was called on to apply foreign law, it had to do so within the overall context of the foreign legal system, wherever possible. When interpreting the foreign legislation to be applied, it was not bound by the case law of national courts, but if it was aware of the case law, in particular of the highest national courts, it should consider and evaluate it in coming to its decision. As regards whether instituting national proceedings might have involved an abuse of law ("Rechtsmissbrauch"), the Legal Board held that, to avoid contradictory interpretations, the EPO should rule on any such issues autonomously, i.e. irrespective of national legal systems, even when they arose in relation to staying proceedings. Improperly asserting a right could amount to an abuse of law in some cases, for instance if the right was asserted predominantly with a view to causing damage, ahead of other, legitimate aims. The abuse of law had to be established beyond any doubt; that meant carefully examining and weighing up the circumstances of the individual case, with the burden of proof falling on whoever alleged the abuse.

In T 1473/13 the appellant's request for a stay of proceedings mentioned constitutional complaints pending before the German Federal Constitutional Court (FCC) on the basis of claimed insufficient judicial relief at the EPO against decisions of the boards of appeal. With reference to one of the constitutional complaints, the board explained that the appellant in the case in hand had not stated why and how a ruling on certain provisions of the EPC, its Implementing Regulations, the RPBA and the RPEBA could impact on other board decisions with effect for Germany. For the board it was not obvious that any FCC decisions on the constitutional complaints would have direct legal implications beyond those cases concerned. The appellant had also stated no possible disadvantage from a decision of the board in the case in hand in case of success of the constitutional complaints. The board held that in the absence of an established disadvantage for the appellant, the respective adverse consequences of staying or not staying the proceedings (i.e. the delay of the proceedings) could not be balanced. Consequently, the board held that the request for a stay must be refused.

3.2. Rule 14(3) EPC

Under R 14(3) EPC (R 13(3) EPC 1973), upon staying the proceedings for grant, the EPO may set a date on which it intends to resume the proceedings for grant, regardless of the stage reached in the national proceedings under R 14(1) EPC. It is clear from the

wording of R. 14(3) EPC that this is a discretionary decision (J 33/03; see also J 2/14, J 3/18).

In J 10/02 the Legal Board, exercising its discretion under R. 13(3) EPC 1973 took into account the fact that the entitlement proceedings only concerned part of the invention and the duration of the suspension.

In parallel decisions J 6/10 and J 7/10 the Legal Board held that some aspects of the exercise of discretion under R. 14(3) EPC were (i) how long the proceedings before the national courts/authorities have been pending (with a period of more than four years held to be considerable both for grant proceedings to be stayed and for entitlement proceedings to be pending in first instance) (ii) the duration of the suspension of grant proceedings, and (iii) requests for suspension of grant proceedings filed at a late stage.

In J 15/13 the Legal Board held that the filing of the request under R. 14(1) EPC at the last possible moment may only be taken as an argument for the resumption of the grant proceedings if such behaviour appeared to be a misuse of the respondent's right to a stay of the grant proceedings.

In J 4/17 the Legal Board held that the legislator had left it to practice and jurisprudence to define the circumstances that justify setting a date for resumption on a discretionary basis. Resumption of the proceedings was not limited to cases involving misuse or delaying tactics. The possibility that the EPO sets a date for resumption upon staying the proceedings for grant hints towards a broader construction. However, an applicant cannot justify its request for resumption based on the length of the entitlement proceedings where this duration has been significantly caused by the applicant's procedural conduct.

In J 13/12 the Legal Board decided that in exercising its discretion under R. 14(3) EPC, the EPO had to weigh the interests of the applicant up against those of the third party which had brought a national action to determine rights against the applicant. The Guidelines for Examination, as internal administrative guidelines, could also be consulted; but they gave no indication that the national proceedings had to be finally determined, where applicable after exhaustion of all legal remedies, before a date for resuming the grant proceedings could be set, or at any rate before they could actually be resumed. See also J 14/19.

In J 1/16 the Legal Board held that where, when deciding not to resume proceedings, the Legal Division had properly identified and exhausted its scope for discretion and weighed up the situation in the light of all the relevant factors, without being influenced by anything irrelevant and without making any logical mistakes in its assessment of the facts, it was not open to the Legal Board to exercise its own discretion in the Legal Division's place. Where a decision is basically to be upheld, a subsequent change in circumstances (in the case in hand: an appeal court ruling in national entitlement proceedings) can nevertheless present a ground for adapting it.

In J 3/18 the Legal Board agreed with the decision of the Legal Division not to set a date for resumption of the grant proceedings pursuant to R. 14(3) EPC. The appellant had

alleged, inter alia, that further actions of the respondent (third party) could last for at least a further six years. The board found that the fact that litigation in the Belgian legal system was extremely long until the final decision is reached could not influence the outcome of the appeal proceedings, because it was unclear how long these proceedings would actually take and what consequences these would have for the parties.

The board held in **T 146/82** (OJ 1985, 267) that if, in accordance with R. 13(3) EPC 1973, the EPO set a date on which it intended to continue the proceedings for the grant of the European patent, the date might be varied or the order staying the proceedings might be discharged at the subsequent request of the applicant or of the third party who applied for the order.